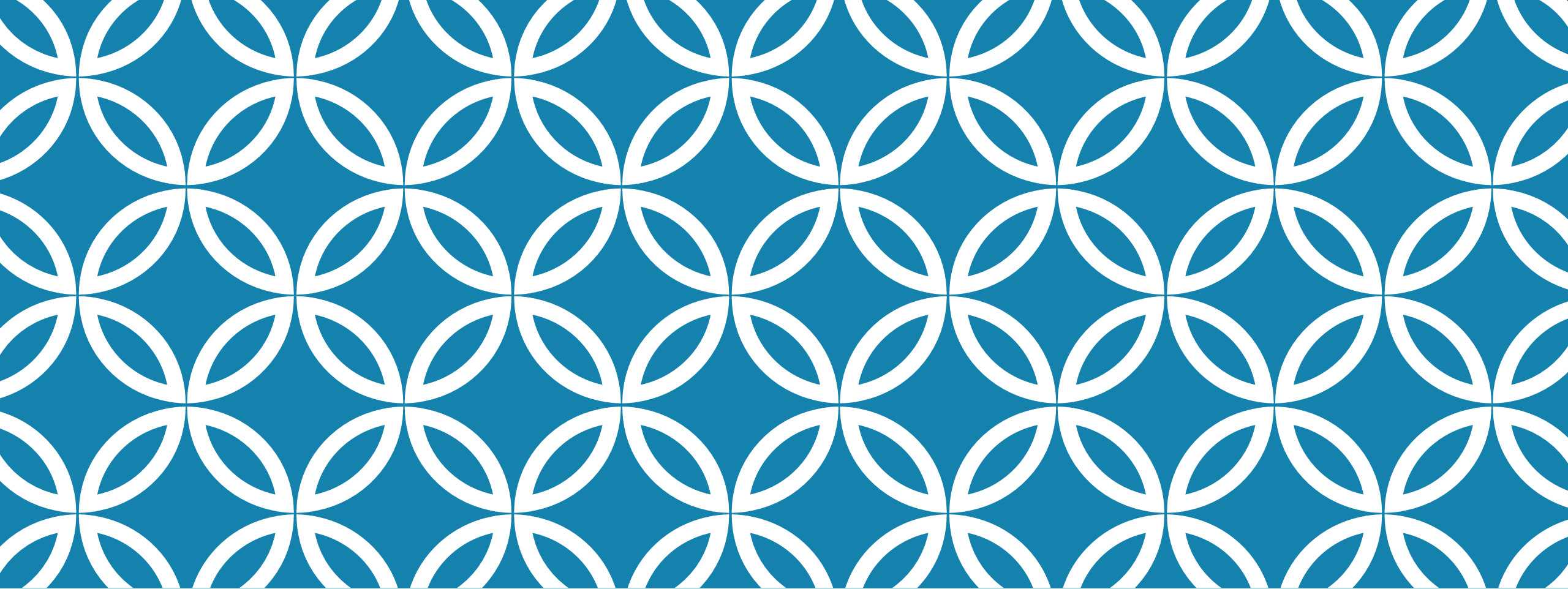




CPC- INTRODUCTION, DEFINITIONS

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INTRO.

Substantive vs. procedural law

CPC is a procedural law based on the maxim “ubi jus ibi remedium”

Procedure is the handmaid of justice

CPC- sections (principles) & orders (means by which principles are applied). Orders can be amended by HC (sec. 121- 131)

Preamble – to consolidate and to amend the laws relating to the procedure followed in the civil courts.

Salem Adv. Bar Association vs. Union of India 2005- primary purpose of CPC- fair, impartial, speedy adjudication

Major amendment- 1976, 1999

APPLICATION

CPC vs. special law – spl law prevails



Not exhaustive – deals with
procedure, sec. 151



Extends to whole of India except
Nagaland and tribal areas.

DEFINITIONS — SEC. 2

Unless anything repugnant

2(2) — DECREE

Ingredients:

There must be an adjudication

Such adjudication must have been done in a suit

It must have determined the rights of the parties with regard to some/ all matters of controversy

Determination of conclusive nature

Formal expression of adjudication

DECREE- GENERAL

May be
preliminary or
final

Deemed decrees
and what is not
considered a
decree

INGREDIENTS

1. Adjudication? – judicial determination, by court (eg- dismissing plaint for want of appearance – not a decree)

(brief mention – ex parte decree, compromise decree)

2. Suit? – Hansraj Gupta V. Official Liquidators of Dehradun- Mussoorie Electric Tramway Co. Ltd. – civil proceedings instituted by the presentation of plaint

No suit- no decree

(treating certain applications as suits – Indian succession act, HMA, Land acquisition Act etc.)

SUIT



Proceeding initiated by a party against another in the court of law



Essentials of a suit? – parties, subject matter (COA), relief claimed



Pandurang Ramchandra v. shantabai 1989 – suit in a wider sense means any proceeding in a court by which a person pursues the remedy which law affords, instituted by a plaintiff.



Ethiopian Airlines v. Ganesh Saboo 2011



3. Rights of parties in controversy? – substantive rights

Matter in controversy – subject matter of suit wrt which relief is sought

4. Conclusive determination? – final, conclusive wrt court which passes it

Eg- adjournment, remission by appellate court – not decree

Dismissal of suit for want of evidence- decree

Prelim and final decrees



TEST? – whether decision is final and conclusive in essence and substance for the rights and liabilities in question

Court to consider- pleadings, proceedings

Preliminary vs. final decree- conclusive wrt one issue/right but does not finally dispose off the suit

Shankar vs. Chandrakant





DEEMED DECREES

Rejection of plaint

Determination of any question within sec. 144

DOES NOT INCLUDE: Order, Dismissal for default.